

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
EDWIN SANCHEZ,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER MICHAEL
NOVELLINO, POLICE OFFICER JOHN/JANE DOE(S)
#’S 1-5,Defendants.
-----X

Index No.:

Date Purchased:

SUMMONSPlaintiff designates NEW YORK
County as the place of trial.The basis of venue is:
Incident LocationPlaintiff resides at:
465 E 10th St
New York, NY 10009**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff’s attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 2nd, 2018

NASS ROPER & LEVIN, P.C.

By:

_____
JOSEPH BECKER, ESQ.
Attorneys for Plaintiff
266 W 37th Street RM 801
New York, NY 10018
718-775-3246**Defendant’s Address:**NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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EDWIN SANCHEZ,

Plaintiff,

- against -

CITY OF NEW YORK, POLICE OFFICER MICHAEL
NOVELLINO, POLICE OFFICER JOHN/JANE DOE(S) #'S
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COMPLAINT

Index No.:

**PLAINTIFF DEMANDS
TRIAL BY JURY ON
ALL ISSUES**

Plaintiff, EDWIN SANCHEZ, by his attorneys, NASS ROPER & LEVIN, P.C.
complaining of the Defendants, respectfully alleges, upon information and belief, as follows:

I. PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff, EDWIN SANCHEZ, seeks damages to redress the deprivation, under color of state law, of rights secured to him under the Fourth, Fifth, Sixth and Fourteenth Amendments of the United States Constitution. On or about January 21st 2017, at approximately 7:00 P.M., at or near the location of 12th Street in the County of New York, City and State of New York, EDWIN SANCHEZ was falsely arrested and maliciously prosecuted by Defendants including, but not limited to, CITY OF NEW YORK, POLICE OFFICER MICHAEL NOVELLINO and POLICE OFFICER JOHN/JANE DOE(S) #'S 1-5. It is alleged that Defendants falsely arrested Plaintiff and maliciously prosecuted him causing him to lose his employment in the process.

II. JURISDICTION

2. Jurisdiction is conferred upon this Court by 28 U.S.C. §1343 (3) and (4), which provides for original jurisdiction in this court of all suits brought pursuant to 42 U.S.C. §1983, and by 28 U.S.C. §1331, which provides jurisdiction over all cases brought pursuant to the Constitution and laws of the United States. This Court has subject matter jurisdiction over Plaintiff's federal and state law claims.

III. PARTIES

3. Plaintiff, EDWIN SANCHEZ, at all times relevant hereto resided in Queens County, specifically 465 E 10th St. New York, NY 10009, in the City and State of New York.
4. Defendant, CITY OF NEW YORK, (hereinafter "CITY") is a municipal corporation, incorporated pursuant to the laws of the State of New York, which operates the New York City Department of Homeless Services and as such is the public employer of the Defendant officers herein.
5. Defendant, POLICE OFFICER MICHAEL NOVELLINO (SH: 14234), of the 9th Precinct was a New York City police officer, and at all relevant times hereto, acted in that capacity as agent, servant, and/or employee of the City of New York and within the scope of his employment.
6. Defendant, POLICE OFFICER JANE/JOHN DOE(S) #'s 1-5 were New York City police Officers, and at all relevant times hereto, acted in that capacity as agents, servants, and/or employees of the City of New York and within the scope of their employment.
7. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities.

IV. FACTS

8. On or about January 21st, 2017, at approximately 7:00 p.m., EDWIN SANCHEZ (“Plaintiff”), was walking home on 12th Street in the County of New York, City and State of New York.
9. Plaintiff was crossing the street when four plain clothes officer approached plaintiff.
10. The four officers handcuffed Plaintiff and walked him over to an area approximately 60 feet away. Once there, one of the officer picked up a bag, displaying it to Plaintiff and saying that it contained cocaine and that it belonged to Plaintiff.
11. Plaintiff had no idea what the officer was talking about and Plaintiff was never in the area that the officers walked him over to. Therefore, appropriately, Plaintiff denied that the bag was his or ever in his possession.
12. Plaintiff was taken to the 9th Precinct where he was questioned throughout most of the day about incidents in the area – none of them related to his arrest.
13. Plaintiff was eventually processed and arraigned where bail was set.
14. Plaintiff was remanded to The Tombs for approximately seven to eight days where it was determined that the lab report found the substance within the bag to be inconclusive.
15. On January 26th, the Assistant District Attorney motioned to dismiss the case then pending against Plaintiff.

16. Plaintiff was released but was unable to get his employer to employ him again as a barber thereby losing his job and income.
17. That on or around the 2nd day of February, 2017, Plaintiff's Notice of Claim and Intention to sue was duly served upon and filed with the CITY; said Notice was filed within ninety (90) days after the cause of action herein accrued (both the arrest and the dismissal) and set forth the name and post office address of Plaintiff, the nature of the claim, the time when, the place where, the manner in which the claim arose and the items of damage and injuries sustained. Further, an Acknowledgment Letter was provided by the City and a claim number was assigned to the matter, to wit; 2017PI003189.
18. That pursuant to GML 50-h a "50-h" hearing was requested by Defendant, City of New York, and was held on April 3, 2017 at the law firm of Schiavetti, Corgan, DiEdwards, Weinberg & Nicholson, LLP, LLP at 575 Eighth Avenue, Suite 14th Floor, New York, NY 10018.
19. That at least thirty (30) days have elapsed since the demand or claim upon which these actions are predicated was presented to CITY for adjustment or payment thereof and that it has neglected and/or refused to make adjustment or payment thereof.

V. FIRST CAUSE OF ACTION
Pursuant to §1983 and New York State Law (FALSE ARREST)

20. Paragraphs 1 through 19 of this complaint are hereby re-alleged and incorporated by reference herein.
21. That Defendants had neither valid evidence for the arrest of Plaintiff nor legal cause or excuse to seize and detain him for approximately six days.

22. That in detaining Plaintiff for approximately six days, and without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the New York City Police Department under the color of State and/or local law.
23. That Defendant POLICE OFFICER MICHAEL NOVELLINO signed an affidavit stating that Plaintiff committed the charges alleged knowing that they had not occurred.
24. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
25. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
26. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of Plaintiff's rights alleged herein.
27. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of Plaintiff's rights, subjected Plaintiff to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

28. By reason of the foregoing, Plaintiff suffered mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

VI. SECOND CAUSE OF ACTION

Pursuant to §1983 and New York State Law (MALICIOUS PROSECUTION)

29. Paragraphs 1 through 28 are hereby re-alleged and incorporated by reference herein.
30. That Defendants, with malicious intent, arrested Plaintiff and initiated a criminal proceeding despite the knowledge that Plaintiff had committed no crime.
31. That the criminal matter against Plaintiff was terminated in his favor and the court dismissed the case by motion of the District Attorney on January 26th, 2017.
32. That there was no probable cause for the arrest and criminal proceeding.
33. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of Plaintiff's rights, deprived Plaintiff of his liberty when they maliciously prosecuted him and subjected him to an unlawful, illegal and excessive detention, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.
34. That upon information and belief, Defendants had a policy and /or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the above described policies and customs, Plaintiff was maliciously prosecuted despite the fact that he had committed no violation of the law.
35. That upon information and belief it was the policy and /or custom of Defendant CITY to inadequately hire, train, supervise, discipline and /or terminate their officers, staff,

- agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.
36. That as a result of the above described policies and customs, Defendant CITY, its staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
37. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of Plaintiff's rights alleged herein.
38. That in so acting, Defendant CITY abused its power and authority as policymaker of the NYPD under the color of State and/or local law.
39. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorneys' fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

VII. THIRD CAUSE OF ACTION
Pursuant to State Law (*RESPONDEAT SUPERIOR*)

40. Paragraphs 1 through 39 are hereby re-alleged and incorporated by reference herein.
41. That at all times, all Defendants were acting within the scope of their employment.
42. That Defendant CITY was able to exercise control over Defendant Officers' activities.
43. That Defendant CITY is liable for Defendant Officers' actions under the doctrine of respondeat superior.

By reason of the foregoing, Plaintiff suffered mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

INJURY AND DAMAGES

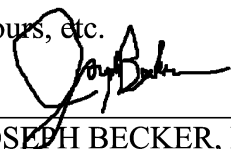
As a result of the acts and conduct complained of herein, Plaintiff has suffered permanent personal and injuries, deprivation of constitutional rights, emotional pain, suffering, inconvenience, injury to his reputation, loss of enjoyment of life, loss of liberty and other non-pecuniary losses. PLAINTIFF has further experienced severe emotional and physical distress.

WHEREFORE, Plaintiff respectfully requests that judgment be entered:

1. Awarding Plaintiff compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding Plaintiff punitive damages in an amount to be determined by a jury;
3. Awarding Plaintiff interest from January 21, 2017; and
4. Awarding Plaintiff reasonable attorney's fees pursuant to 42 USC §1988; and
5. Granting such other and further relief as to this Court seems proper.

Dated: New York, NY
February 2nd, 2018

Yours, etc.



JOSEPH BECKER, ESQ.
ATTORNEY FOR PLAINTIFF
NASS & ROPER LAW, P.C.
266 W 37TH STREET RM 801
NEW YORK, NEW YORK 10018

ATTORNEY'S VERIFICATION

JOSEPH BECKER, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney and member of NASS ROPER & LEVIN, P.C., attorneys for EDWIN SANCHEZ. I have read the annexed COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently in the county wherein the attorneys for the Plaintiff maintain their offices.

DATED: New York, New York
February 2ns, 2018



JOSEPH BECKER, ESQ.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

EDWIN SANCHEZ,

Plaintiff,

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**CITY OF NEW YORK,
POLICE OFFICER MICHAEL NOVELLINO,
POLICE OFFICER JOHN/JANE DOE(S) #'S 1-5,
Defendants.**

SUMMONS & VERIFIED COMPLAINT

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* Not for service of papers.